



NOVA

F O O D T R A I L E R

FOOD TRAILER REQUIREMENTS CHECKLIST

Mandatory Requirements to Legally Operate a Food Trailer in Texas

Every item on this list is required before you can legally operate. No optional items — if it is here, you need it.

Nova Food Trailer: Nova Food Trailer delivers your trailer fully built, equipped, and wrapped. This checklist covers the mandatory requirements on your side.

1 BUSINESS FORMATION

- ☐ **Register your business (LLC, DBA, or Sole Proprietorship)**
File with the Texas Secretary of State (LLC) or your county clerk (DBA / Assumed Name Certificate). You cannot get permits without a registered business.
- ☐ **Obtain an EIN (Employer Identification Number)**
Free from the IRS at irs.gov. Required to open a business bank account, file taxes, and apply for permits.
- ☐ **Texas Sales Tax Permit**
Free from the Texas Comptroller of Public Accounts. You are legally required to collect and remit sales tax on food sales in Texas.
- ☐ **Business bank account**
Required to separate personal and business finances. Banks will ask for your EIN and formation documents.

2 HEALTH & FOOD SAFETY CERTIFICATIONS

- ☐ **Food Manager Certification (ServSafe or equivalent)**
Texas law requires at least one certified Food Manager on-site during all hours of operation. Exam + course, ~\$150–\$200. Valid for 5 years.
- ☐ **Food Handler Certificates — every person who touches food**
Required by Texas law within 60 days of starting work. Online course, ~\$10–\$15 per person. Valid for 2 years.

3 PERMITS & INSPECTIONS

- ☐ **Mobile Food Vendor Permit (from your city)**
Every city in Texas requires a Mobile Food Vendor Permit. Contact your city's permitting or health department to apply. You will typically need your health permit, proof of insurance, commissary letter, and fire inspection approval before they issue this permit.
- ☐ **Health Permit — your County Health Department**
Your trailer must pass a county health inspection before you can operate. Contact your county's health and human services department to schedule. Requirements are set by Texas DSHS and Chapter 228 of the Texas Administrative Code.
- ☐ **Fire Department Inspection**
Required by your city's fire department. Your trailer must pass a fire safety inspection: fire extinguisher(s), hood suppression system (if frying/grilling with grease), and propane system compliance.

4 COMMISSARY KITCHEN

- ☐ **Signed Commissary Kitchen Agreement**
Texas law requires all mobile food vendors to operate from a licensed commissary. This is your base for food prep, storage, cleaning, wastewater disposal, and overnight parking. You must have a signed commissary letter to get your permits. Cost varies by area.

5 INSURANCE

- ☐ **General Liability Insurance — minimum \$1,000,000**
Required by cities, counties, and event organizers. Covers third-party bodily injury and property damage. You cannot get a Mobile Food Vendor Permit without proof of insurance.
- ☐ **Commercial Auto / Trailer Insurance**
Required to legally tow and operate your trailer. Covers collision, theft, fire, and liability during transit.

6 TRAILER REGISTRATION & VEHICLE

- ☐ **Title & Register the Trailer in Texas**
Nova Food Trailer provides you with a bill of sale and VIN. You must register and title the trailer at your county Tax Assessor-Collector office.
- ☐ **Tow vehicle rated for your trailer**
You need a truck or SUV rated to tow your trailer. Check the GVWR (Gross Vehicle Weight Rating) and tongue weight — your vehicle must handle both.

- ☐ **Food thermometer (probe, instant-read)**
Required by health code. Inspectors will check that you have one and that you are logging temperatures.
- ☐ **Daily temperature log sheets**
Required. You must record fridge, freezer, and hot-holding temperatures daily. Inspectors will ask for your logs.
- ☐ **First aid kit**
Required to be on-site during all hours of operation.
- ☐ **Propane tanks (if your equipment uses gas)**
Typically 2 tanks of 30–40 lb. Must comply with fire code. Connections are inspected.
- ☐ **Cleaning & sanitizing supplies**
Sanitizer, test strips, degreaser, towels, trash bags. Health inspectors verify proper sanitization.
- ☐ **Disposable serviceware**
Plates, cups, napkins, utensils, to-go containers, gloves. Required for service — you cannot operate without them.
- ☐ **Initial food inventory & smallwares**
Your ingredients, plus spatulas, tongs, knives, cutting boards, pans, and containers. You need these to open.

PRO TIP

Start the permit, commissary, and insurance process while your trailer is being built — most applications take 2–4 weeks. That way you can start operating the same week your trailer is delivered.

This checklist is provided for informational purposes only and does not constitute legal, tax, or regulatory advice. Requirements may vary by city and county. Always verify with your local authorities.